

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MICHAEL JOHN NAPOLITANA,

Petitioner

VS.

LEEANN JEANETTE BAILEY,

Respondent

) Case Number: FDI-18-790530

) Hearing Date: August 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF REQUEST FOR ORDER OF CHANGE OF CHILD
CUSTODY CHANGE OF CHILD CUSTODY, LEGAL CUSTODY RE EDUCATION OF KYLE,
CLARIFICATION OF ALLOCATION OF COSTS; REQUEST FOR ORDER FOR CHANGE OF
REQUEST FOR ORDER REGARDING CHANGE OF VISITATION, ENFORCEMENT OF
MARITAL SETTLEMENT AGREEMENT AND AUGUST 5, 2021 FOAH, AND 271 SANCTIONS
CHANGE OF VISITATION (PARENTING TIME), REQUEST FOR ENFORCEMENT OF MSA AND
8/5/21 FOAH; SEE SECTION 7; AND FC 271 SANCTIONS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Michael Napolitana (Father) and Respondent Lee Ann Bailey (Mother).
They share one minor child: Kyle Napolitana (DOB: 08/16/11).
- 2) On April 28, 2026, Father filed a Request for Order seeking a modification of child custody; legal
custody re: Education of Kyle; and clarification of allocation of costs. Father requests:
 - a. Termination of the minor child's enrollment and attendance at Sacred Heart; and
 - b. Sole legal custody regarding education.
- 3) On April 28, 2026, Father filed a Memorandum of Points and Authorities.

- 1 4) On April 30, 2026, Mother filed a Request for Order in which he seeks the following orders:
- 2 a. Modification of Visitation;
- 3 i. Kyle to be in Mother's care all school days and for weekends/holidays to be
- 4 shared.
- 5 ii. Rescind travel order.
- 6 iii. Court order to speak with minor child who has expressed a desire to speak to the
- 7 Court.
- 8 b. Request for Enforcement of MSA and 08/05/21 FOAH;
- 9 i. Reimbursement of 50% of \$1600 (enrollment deposit).
- 10 ii. Order Father to pay his share of the child's tuition.
- 11 c. 271 Sanctions (\$2000) for what this request is based upon is unclear to the Court.
- 12 d. 271 Sanctions (\$5000) for "Mike's intentional violation of the Travel Order in August of
- 13 2025.
- 14 e. Prevailing Party Attorney Fees (pursuant to Judgment terms) in the amount of \$8,290.
- 15 5) On April 30, 2026, Mother filed a "Declaration of Counsel."
- 16 6) On June 1, 2026, Mother filed a Responsive Declaration to Father's April 28, 2026, RFO.
- 17 7) On June 1, 2026, Counsel for Mother filed a declaration in support of request for attorney fees
- 18 and costs, which has been read and considered by this Court. Mother is asking this court to order
- 19 Father to pay \$6,905.00 in FC 271 sanctions.
- 20 8) On June 3, 2026, Father filed a Responsive Declaration to Mother's April 30, 2026, RFO. The
- 21 Court notes that Father has requested attorney fees and costs, but does not provide a statutory
- 22 basis, nor does he submit an amount (via attorney declaration) that he is seeking.
- 23 9) On June 3, 2026, Father filed a Request for Judicial Notice of his RFO filed April 28, 2026
- 24 (Court notes it does not need to take judicial notice of this RFO, as it has been fully read and
- 25 considered and is part of the court's review.)
- 26 10) On June 3, 2026, Father filed a Memorandum of Points and Authorities in support of his
- 27 Responsive Declaration.
- 28 11) On June 8, 2026, Mother filed a Reply to Father's Responsive Declaration.
- 29 12) On June 8, 2026, Father filed a Reply to Mother's Responsive Declaration.

1 13) On June 9, 2026, Father filed “Petitioner and Responding Party Michael Napolitana Objection to
2 Respondent Leeann Bailey’s Request for Attorney Fees & Costs Pursuant to Fam. Code 271” in
3 which he enters two formal objections.

4 14) On June 11, 2026, Mother filed an “Objection and Request to Strike Portions of 1) Petitioner and
5 Responding Party Michael Napolitana’s Objection to Respondent Leeann Bailey’s Request for
6 Attorney Fees and Cost and Sanctions Pursuant to Family Code section 271, and 2) Reply of
7 Petitioner Michael Napolitana to Respondent Leeann Bailey’s Responsive Declaration. (Four
8 objections are OVERRULED)

9 15) On June 15, 2026, the Court conducted a Readiness hearing. At Readiness, the Court referred the
10 parties to FCS Mediation to occur on August 11, 2026 and set a return hearing to occur on August
11 18, 2026.

12 16) On August 11, 2026, the parties attended FCS and did not reach any agreement.

13 17) On August 11, 2026, Mother filed a “Supplemental Declaration of Respondent Leeann Bailey in
14 Support of Her Request for Enforcement of MSA and 08/05/21 FOAH; FC 271 Sanctions; and
15 Custody Timeshare Modification.”

16 18) On August 11, 2026, Mother filed an “Updated Declaration of Farimah Erlandson, Esq., In
17 Support of Respondent’s Request for Attorney Fees and Costs Pursuant to Family Code section
18 271” in which her request for 271 sanctions has been updated to a total of \$14,365.00.

19 **B. Findings and Order**

20 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
21 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
22 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
23 child(ren) is the United States.

24 2) As a preliminary matter, the Court rules on the parties’ evidentiary objections as follows:

25 a. Father’s Objections filed June 9, 2026: both objections are OVERRULED; and

26 b. Mother’s Objections filed June 11, 2026: all four objections are OVERRULED.

27 3) Father’s request for a modification of the existing child custody order is DENIED.

28 4) Father’s request for an order terminating the minor child’s enrollment at Sacred Heart is
29 DENIED.

- 1 5) Father's request for attorney fees and costs is DENIED. Father neither provided this Court with a
2 statutory basis for his request nor any evidence regarding the amount of fees requested.
- 3 6) Father's request for a clarification of the tuition payment order is GRANTED. Given that Mother
4 has sole legal custody, if Mother chooses to place the minor child in private school, then she is
5 responsible for 100% of tuition and expenses.
- 6 7) As such, Mother's request that Father pay 50% of Kyle's tuition expenses is DENIED. Mother is
7 responsible for 100% of Kyle's tuition and expenses associated with his attendance at Sacred
8 Heart.
- 9 8) Mother's request for a change in the parenting schedule is DENIED.
- 10 9) Mother's request that the Court speak to the minor child is DENIED, as the Court is not making
11 any modification to Mother's school selection and has denied Father's request for a modification
12 of Mother's sole legal custody.
- 13 10) Mother's Request for Enforcement of MSA and 08/05/21 FOAH is DENIED. As so aptly stated
14 by Father, Mother has essentially asked this Court to order Father to comply with the MSA
15 regarding payment of tuition, when she came to Court (several years ago) and asked the Court to
16 allow her to avoid compliance with the particular provision she is now asking this Court to
17 enforce. The Court finds Mother's requests to be disingenuous and inconsistent with Judge
18 Evangelista's prior orders granting Mother the relief she previously sought.
- 19 11) Mother's request for 271 sanctions is DENIED. The Court finds that Mother's conduct caused
20 this dispute. Had Father stated an amount of 271 sanctions he was requesting, the Court would
21 have granted Father 271 sanctions against Mother.
- 22 12) Mother request for "prevailing party" attorney fees is DENIED. Mother is not the prevailing
23 party.
- 24 13) Counsel for Mother shall prepare the Findings and Order After Hearing.
- 25 14) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
26 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
27 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
28 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
29 proposed order after hearing directly to the court. Failure to submit the order after hearing within

1 10 days may allow the other party to prepare a proposed order and submit it to the court in
2 accordance with CA Rules of Court, Rule 5.125(d).